

SERIES OPERATING AGREEMENT

SHIFT DAO LLC

Series 17 “S&P 500 X3 SHIFT”

NOTICE OF RESTRICTIONS ON DUTIES AND TRANSFERS

The rights of members in a decentralized autonomous organization may differ materially from the rights of members in other resident domestic or non-resident domestic limited liability companies. The DAO Act, underlying smart contracts, certificate of formation and limited liability company agreement (i.e., the operating agreement), if applicable, of a decentralized autonomous organization may define, reduce or eliminate fiduciary duties and may restrict transfer of ownership interests, withdrawal or resignation from the decentralized autonomous organization, return of capital contributions and dissolution of the decentralized autonomous organization.

This Series Operating Agreement (the “**Agreement**”) relates to **S&P 500 X3 SHIFT** (“**Series 17**”), a designated series of **Shift DAO LLC**, a for-profit series limited liability company (the “**Company**” or “**Master DAO**”) formed under the laws of the Republic of the Marshall Islands pursuant to the Marshall Islands Limited Liability Company Act of 1996, as amended (the “**LLC Act**”), the Marshall Islands Business Corporations Act, as amended (the “**BCA**”), and the Decentralized Autonomous Organization Act, 2022, as amended (the “**DAO Act**”), and is entered into by and between the Company, solely in its limited and non-discretionary capacity as the administrative agent of Series 17, and the initial nominee member of Series 17, which holds its membership interest solely for purposes of facilitating the formation and annual renewal of Series 17 and has no economic entitlement or discretionary authority, and shall become effective as of the date of its execution (the “Effective Date”). Capitalized terms used but not otherwise defined in this Agreement shall have the meanings ascribed to them in the Company’s Master Operating Agreement or, if not defined therein, in the applicable provisions of the LLC Act, the BCA, or the DAO Act, as applicable.

WHEREAS, the Company hereby creates a new Series called S&P 500 X3 SHIFT (“Series 17”), which shall be governed by this Agreement. The Company is not a manager, managing member, fiduciary, or controlling person of Series 17 and acts solely in an administrative and non-fiduciary capacity;

WHEREAS, the Series 17 Members shall have limited liability company interests with separate and distinct rights, powers, duties, obligations, and objectives from the Master DAO pursuant to Section 79 (Series of members, managers of limited liability company interest) of the LLC Act, and each Series 17 Member shall possess solely the economic rights expressly set forth herein and no voting, governance, consent, approval, management, or fiduciary rights;

WHEREAS, Series 17 is designated solely to acquire, hold, and maintain in its treasury assets whose economic performance corresponds to the S&P 500® index (the “Assets”), as

established and approved by the Master DAO. To the maximum extent permitted by the LLC Act, including, without limitation, Section 79, the assets, income, gains, losses, expenses, deductions, credits, distributions, debts, obligations and liabilities of the Series 17 Assets shall be associated with and limited to Series 17, and not any other Series or the Company;

WHEREAS, Series 17 Members are owners in the Series 17 Assets and can be members of the Master DAO, and members of the Master DAO can also be members of Series 17 and other Series;

WHEREAS, to the maximum extent permitted by the LLC Act, the debts, liabilities, obligations and expenses associated with Series 17 shall not be asserted against income, gains or assets of any other Series or the Company;

WHEREAS, a Series 17 Member shall have no rights or interest with respect to any other Series, other than through such Member's interest in such Series independently acquired by such Member;

WHEREAS, Series 17 shall be dissolved and its affairs wound up pursuant to the provisions herein. The dissolution and termination of Series 17 shall not, in and of itself, cause or result in the dissolution or termination of the Company or any other Series;

WHEREAS, Series 17 and all other Series are formed and maintained pursuant to the existence and continued operation of the Company, and in the event that the Company as the Master DAO determines to wind up, cancel, or otherwise cease operations (including due to insolvency), the legal status of Series 17 and all other Series are correspondingly affected, requiring a determination as to whether such Series shall (i) continue as an independent DAO LLC pursuant to applicable law, or (ii) be wound up and its assets distributed in accordance with this Agreement;

WHEREAS, there shall be no additional reporting requirements for Series 17 beyond the requirements for the Master DAO itself pursuant to Section 103(1)(c) of the DAO Act;

NOW, THEREFORE, for and in consideration of mutual covenants contained and intending to be legally bound hereby, the parties agree as follows:

ARTICLE I

ORGANIZATION

I.1 Organization. Series 17 is a designated series under Shift DAO LLC pursuant to the provisions of the DAO Act, the LLC Act, and the BCA.

I.2 Decentralized Autonomous Organization. The Series shall operate as a decentralized autonomous organization within the meaning of §102(c) and §104(1) and (3) of the DAO Act,